NEW JERSEY REALTORS® STANDARD FORM OF RESIDENTIAL LISTING AGREEMENT - SALE/LEASE

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PARTIES TO THIS AGREEMENT:

Seller(s)/Landlord(s): _____ _____ _____ _____ (referred to as "**Seller/Landlord**")

Seller/Landlord's Primary Address: _____

Seller/Landlord's Phone: _____ Seller/Landlord's Email: _____

Brokerage Firm: _____ (referred to as "**Broker**")

Licensee(s): _____ _____ _____ _____ (referred to as "**Licensee**")

This RESIDENTIAL LISTING AGREEMENT ("**Agreement**") is entered into between Seller/Landlord of the property known as _____

shown on the municipal tax map of _____ County _____

as Block _____ Lot _____ (the "**Property**") Qualifier _____ (if the Property is a condominium), and Broker as ☐ exclusive broker ☐ non-exclusive broker for the listing, marketing, leasing and/or sale of the Property. The Licensee shall be responsible for ensuring that Broker's duties hereunder are fulfilled; however, Broker may assign other licensees to fulfill such duties, if deemed appropriate by Broker.

1. AGENCY DISCLOSURE: The real estate license law of the State of New Jersey requires every real estate licensee to disclose the business relationship the licensee will have with Seller/Landlord. Accordingly,

BROKER INTENDS, AS OF THIS TIME, TO WORK WITH SELLER/LANDLORD AS A: (choose all that apply)

☐ **SELLER/LANDLORD'S AGENT.**

☐ **DISCLOSED DUAL AGENT IF THE OPPORTUNITY ARISES.**

☐ **DISCLOSED DUAL AGENT WITH DESIGNATED AGENCY IF THE OPPORTUNITY ARISES.**

The potential for Broker to work with Seller/Landlord as a Disclosed Dual Agent or Designated Agent will arise if/when a potential buyer and/or tenant who has a brokerage services agreement with Broker becomes interested in the Property, as discussed in Sections 9 and 10 below.

2. TERM:

(a) The right to sell and/or lease/rent shall begin on _____ (the "**Commencement Date**") and shall expire on midnight of _____ (the "**Expiration Date**"), subject to the Protection Period set forth in Section 5(e).

(b) Broker and Seller/Landlord agree that no marketing or showing of the Property may occur until the Commencement Date.

(c) The date of signing this Agreement through the Expiration Date is called the "**Term**" of this Agreement.

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3. PROPERTY LISTING PRICE: Seller/Landlord will list the Property for:

(a) Sale for $ _____; and/or

(b) Lease for $ _____;

(c) Additional Terms: _____

(d) Seller/Landlord agrees that the Listing Price(s) set forth in (a) and/or (b) may be changed only by written instruction.

4. MARKETING:

(a) Multiple Listing Service or Other Database: Seller/Landlord authorizes Broker to submit this Agreement and related information to one or more of the following multiple listing systems ("**MLS**") _____ _____.

i. Seller/Landlord acknowledges that Broker shall not submit any notice to any MLS or other database stating whether Seller/Landlord authorized the sharing of compensation with cooperating subagents, transaction brokers or buyer's brokers, or the amount of the shared compensation, if any.

(b) Office Exclusive: Seller/Landlord shall initial here _____ if Broker is NOT authorized to submit the listing for the Property to an MLS or other database for distribution to any agents not affiliated with Broker during the Term of this Agreement.

i. Seller/Landlord acknowledges and agrees that the Property shall be treated as an office exclusive, that it shall not be publicly advertised and that a Waiver of Broker Cooperation compliant with N.J.A.C. 11:5-6.4(f)(4) is made a part of this Agreement and shall be made available for inspection by other brokers upon request.

(c) Additional Authorizations: Seller/Landlord authorizes Broker as follows: (choose all that apply)

☐ If Seller/Landlord authorizes Broker to list the Property on an MLS, Seller/Landlord also authorizes the Property to be marketed on the internet, including, but not limited to, internet databases.

☐ To market the Property as "Coming Soon" beginning on the Commencement Date, except that the Property will not be marketed as "Coming Soon" on any MLS that does not permit marketing a property as "Coming Soon." If the Property is marketed as "Coming Soon," the status of the listing shall be changed to active on: _____.

☐ To place "For Sale" or similar signs on the Property and, if this is an exclusive Agreement, to remove other such signs.

☐ To conduct open houses of the Property at such times as Seller/Landlord and Broker agree upon.

☐ To disclose to MLS participants and subscribers and licensed/certified appraisers any buyer closing costs or concessions paid by Seller/Landlord as part of a closed transaction.

☐ To have photographs and/or videos taken of the Property by Broker and, if applicable, check the following: ☐ buyers/tenants ☐ Buyer's agents. Seller/Landlord grants Broker an unlimited license to use the photographs and/or videos in Broker's advertising of the Property.

☐ To place a lockbox on the Property. If Seller/Landlord authorizes the placement of a lockbox on the Property, Seller/Landlord shall execute the attached Lockbox Authorization Addendum.

5. COMMISSION TO BROKER: Seller/Landlord agrees to pay Broker a commission as follows: **AS SELLER/LANDLORD YOU HAVE THE RIGHT TO INDIVIDUALLY REACH AN AGREEMENT ON ANY FEE, COMMISSION OR OTHER VALUABLE CONSIDERATION WITH ANY BROKERAGE FIRM. BROKER COMMISSIONS ARE FULLY NEGOTIABLE AND NO FEE, COMMISSION OR OTHER CONSIDERATION HAS BEEN FIXED BY ANY GOVERNMENTAL AUTHORITY OR BY ANY TRADE ASSOCIATION OR MULTIPLE LISTING SERVICE.**

(a) Sale:

i. Exclusive Agreement: If this is an exclusive Agreement and the Property is sold by Broker, any cooperating broker, Seller/Landlord or any other person or entity, or if the Property is the subject of an offer or under contract during the Term of this Agreement, Seller/Landlord shall pay Broker a total commission of _____, which is subject to commission splitting, if authorized by Seller/Landlord, in Section 7 of this Agreement.

ii. Non-Exclusive Agreement: If this is a non-exclusive Agreement and the Property is sold to a buyer introduced to the Property by Broker, or the Property is the subject of an offer or under contract during the Term of this Agreement to a buyer introduced to the Property by Broker, Seller/Landlord shall pay Broker a total commission of _____, which is subject to commission splitting, if authorized by Seller/Landlord, in Section 7 of this Agreement.

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iii. Regardless if this is an exclusive or a non-exclusive Agreement, if the buyer is not represented by or working with a buyer's agent, subagent or transaction broker, in consideration of the additional work that will have to be undertaken by Broker, or if Broker establishes a Dual Agency and/or Designated Agency relationship, Seller/Landlord shall pay Broker a total commission of _____.

(b) Lease:

i. Exclusive Agreement: If this is an exclusive Agreement, and the Property, or any part thereof, is leased by Broker, Seller/Landlord, or any other person or entity or the Property is the subject of an offer to lease during the Term of this Agreement, Seller/Landlord shall pay Broker a total commission of _____, which shall also be paid on each renewal or extension of the lease and is subject to commission splitting, if authorized by Seller/Landlord, in Section 7 of this Agreement.

ii. Non-Exclusive Agreement: If this is a non-exclusive Agreement, and the Property, or any part thereof, is leased by a tenant introduced to the Property by Broker during the Term of this Agreement, Seller/Landlord shall pay Broker a total commission of _____, which shall also be paid on each renewal or extension of the lease and is subject to commission splitting, if authorized by Seller/Landlord in Section 7, of this Agreement.

iii. Regardless if this an exclusive or non-exclusive Agreement, if the tenant is not represented by or working with a tenant's agent, subagent, or transaction broker, in consideration of the additional work that will have to be undertaken by Broker, or if Broker establishes a Dual Agency and/or Designated Agency relationship, Seller/Landlord shall pay Broker a total commission of _____.

(c) Purchase by tenant: If, during such tenancy, tenant at any time purchases the Property, Seller/Landlord shall pay Broker a commission of _____.

(d) Commission Payable by Seller/Landlord:

i. The commission to Broker will be earned, due and payable by Seller/Landlord under any of the following circumstances: (1) at the distribution of the proceeds from the sale of the Property during the closing or (2) the beginning of the term of any lease for the Property and any renewal or extension thereof, or a portion of the Property, and (3) Seller/Landlord's breach of this Agreement.

ii. For purposes of this Agreement, where the compensation for Broker is based in whole or in part on the purchase price, the purchase price shall include all amounts allocated to, among other things, furnishings, fixtures and other concessions or credits that are agreed upon by Seller/Landlord and the buyer.

(e) Protection Period:

i. Exclusive Agreement: If this is an exclusive Agreement, Broker shall be paid a commission, as set forth above, by Seller/Landlord if the Property becomes subject to a written agreement of sale or other transfer of title between a buyer and Seller/Landlord or written lease between a tenant and Seller/Landlord or their designees, or the Property is sold, conveyed, leased, rented, optioned or in any way transferred within _____ days after the termination or expiration of this Agreement to a buyer or tenant introduced to the Property during the Term of this Agreement regardless of the closing date or the lease commencement date, provided that Broker has provided Seller/Landlord with a written notice which includes the names of such prospective buyers/tenants within ten (10) days after the termination or expiration of this Agreement.

ii. Non-Exclusive Agreement: If this is a non-exclusive Agreement, Broker shall be paid a commission, as set forth above, by Seller/Landlord if the Property becomes subject to a written agreement of sale or other transfer of title between a buyer and Seller/Landlord or written lease between tenant and Seller/Landlord or their designees, or the Property is sold, conveyed, leased, rented, optioned or in any way transferred within _____ days after the termination or expiration of this Agreement to a buyer or tenant introduced to the Property by Broker during the Term of this Agreement, regardless of the closing date or the lease commencement date, provided that Broker has provided Seller/Landlord with a written notice which includes the names of such prospective buyers/tenants within ten (10) days after the termination or expiration of this Agreement.

iii. Whether this is an exclusive or non-exclusive Agreement, Seller/Landlord shall not be obligated to pay such commission if a bona-fide listing agreement is entered into during the protection period with another licensed real estate broker, and a sale, lease or exchange of the Property is made through that broker.

6. CONCESSIONS: Seller/Landlord authorizes the following concession(s) to a buyer: _____

_____

_____

_____

_____

_____

_____

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7. COMMISSION TO COOPERATING BROKER: As mandated by N.J.A.C. 11:5-6.4(f)(3), the following provision must be included in all written listing agreements prepared by licensees:

COMMISSION SPLITS:

LISTING BROKERS USUALLY COOPERATE WITH OTHER BROKERAGE FIRMS BY SHARING INFORMATION ABOUT THEIR LISTINGS AND OFFERING TO PAY PART OF THEIR COMMISSION TO THE FIRM THAT PRODUCES A BUYER. THIS IS GENERALLY REFERRED TO AS THE "COMMISSION SPLIT".

SOME LISTING BROKERS OFFER TO PAY COMMISSION SPLITS OF A PORTION OF THE GROSS COMMISSION, USUALLY EXPRESSED AS A PERCENTAGE OF THE SELLING PRICE, LESS A SIGNIFICANT DOLLAR AMOUNT. OTHER LISTING BROKERS OFFER A PORTION OF THE GROSS COMMISSION LESS ONLY A MINIMAL LISTING FEE OR LESS ZERO.

THE AMOUNT OF COMMISSION SPLIT YOUR BROKER OFFERS CAN AFFECT THE EXTENT TO WHICH YOUR PROPERTY IS EXPOSED TO PROSPECTIVE BUYERS WORKING WITH LICENSEES FROM OTHER BROKERAGE FIRMS.

ON THIS LISTING, THE BROKER IS OFFERING A COMMISSION SPLIT OF _____ MINUS _____ TO POTENTIAL COOPERATING FIRMS.

IF YOU FEEL THAT THIS MAY RESULT IN YOUR PROPERTY RECEIVING LESS THAN MAXIMUM EXPOSURE TO BUYERS OR TENANTS, YOU SHOULD DISCUSS THOSE CONCERNS WITH THE LISTING SALESPERSON OR THEIR SUPERVISING BROKER.

BY SIGNING THIS LISTING AGREEMENT SELLER/LANDLORD ACKNOWLEDGES HAVING READ THIS STATEMENT ON COMMISSION SPLITS.

(a) Consent to Commission Splits with Cooperating Broker: (choose only one)

☐ Seller/Landlord authorizes Broker to offer a commission split(s) to cooperating brokers from the total commission to Broker as set forth in Section 5 of this Agreement.

☐ Seller/Landlord does not authorize Broker to offer a commission split(s) to cooperating brokers from the total commission to Broker as set forth in Section 5 of this Agreement.

(b) Authorized Commission Splits to Cooperating Broker: If Seller/Landlord authorizes commission splits in Section 7(a) above, Seller/Landlord authorizes Broker to offer the following commission splits to cooperating brokers: (complete all that apply)

	Sale	**Lease**	**Purchase by Tenant**
Subagents:	☐ No ☐ Yes, offer _____	☐ No ☐ Yes, offer _____	☐ No ☐ Yes, offer _____
Buyers Brokers:	☐ No ☐ Yes, offer _____	☐ No ☐ Yes, offer _____	☐ No ☐ Yes, offer _____
Transaction Brokers	☐ No ☐ Yes, offer _____	☐ No ☐ Yes, offer _____	☐ No ☐ Yes, offer _____

(c) Consent to Disclose Authorized Commission Splits to Cooperating Broker: If Seller/Landlord authorizes Broker to offer commission splits in Section 7(b) above: (choose only one)

☐ Seller/Landlord authorizes Broker to disclose the authorized commission split(s) to cooperating brokers representing/working with potential buyers/tenants.

☐ Seller/Landlord does not authorize Broker to disclose the authorized commission split(s) to cooperating brokers representing/working with potential buyers/tenants and instructs Broker to do as follows: _____.

8. SELLER/LANDLORD'S DUTY: During the Term of this Agreement, Seller/Landlord shall:

(a) Provide accurate and relevant information regarding the Property to Broker in a timely manner, including but not limited to the presence of any water supply, sewer and/or septic system, problems with drainage, water infiltration, grading or soil stability, environmental hazards, commercial or industrial nuisances (noise, odor, smoke, etc.), utility or other easements, shared driveway or encroachments from or on an adjacent property, lawsuits, foreclosures, bankruptcy, tenancies, judgments, tax liens, proposed assessments, mechanic's and/or construction liens, notices from any governmental agencies, flood hazards, cemetery/grave sites and/or abandoned wells.

(b) Cooperate with Broker by making the Property available for showing(s) at reasonable times and upon reasonable notice.

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(c) If this is an exclusive Agreement, refer to Broker every person who contacts Seller/Landlord during the Term of this Agreement and any extension thereof concerning this listing or the sale or lease of the Property, or any part thereof, and to direct that all negotiations for the sale or lease shall be made through Broker.

(d) If this is an exclusive agreement, submit any offer to purchase or lease the Property to Broker, unless otherwise agreed to in writing by the parties.

(e) If this is an exclusive agreement, work exclusively with Broker regarding the listing, marketing, leasing and/or sale of the Property.

(f) If this is an exclusive agreement, conduct all negotiations and communications for the sale and/or leasing of the Property through Broker.

(g) Agree to hold harmless and indemnify Broker against any loss or damage resulting directly or indirectly from any condition of the Property not disclosed to Broker or from Seller/Landlord's use or acts during the showing or inspection of the Property

(h) Other: _____.

9. DUAL AGENCY: Under New Jersey law, Broker may work with both Seller/Landlord and a buyer/tenant in the same real estate transaction if both Seller/Landlord and buyer/tenant agree to work with Broker as a "Disclosed Dual Agent." To work as a Disclosed Dual Agent, Broker must obtain the written informed consent from both Seller/Landlord and buyer/tenant. Seller/Landlord understands that, by agreeing to allow Broker to work as a Disclosed Dual Agent, Broker will not be able to represent Seller/Landlord or buyer/tenant fully and exclusively. There will be a limitation on Broker's ability to represent either Seller/Landlord or buyer/tenant exclusively. As a Disclosed Dual Agent, Broker will not be able to put either Seller/Landlord's interests ahead of buyer/tenant's interests nor buyer/tenant's interests ahead of Seller/Landlord's interests. **Broker may act as a Disclosed Dual Agent only if Seller/Landlord signs the "Informed Consent to Dual Agency" form attached to this Agreement.**

10. DESIGNATED AGENCY: Under New Jersey law, Broker may designate two different licensees affiliated with Broker to work with Seller/Landlord and a buyer/tenant in the same real estate transaction if both Seller/Landlord and the buyer/tenant agree. In the context of designated agency, Broker will be treated as a dual agent and oversee the transaction to ensure each designated licensee is maintaining the full range of fiduciary duties that are ordinarily owed by a licensee who represents solely Seller/Landlord as a "seller's agent" and by a licensee who represents solely the buyer/tenant as a "buyer's agent". **Broker may appoint a Designated Agent for Seller/Landlord only if Seller/Landlord signs the "Informed Consent to Designated Agency" form attached to this Agreement.**

11. CONSUMER INFORMATION STATEMENT/MEMORANDUM: Seller/Landlord acknowledges receipt of the attached Consumer Information Statement on New Jersey Real Estate Relationships and the Memorandum of the Attorney General about Housing Discrimination Laws, and Seller/Landlord agrees to abide by the Memorandum.

12. PROPERTY CONDITION DISCLOSURE:

(a) Sale: As required by New Jersey law, Seller/Landlord shall provide Broker with a signed property condition disclosure statement filled out by Seller/Landlord. Seller/Landlord shall disclose to Broker all material information concerning the physical condition of the Property not otherwise disclosed in the statement. Seller/Landlord agrees to indemnify and hold Broker harmless from and against any and all claims arising from or related to false and/or incomplete information provided by Seller/Landlord. Such indemnification shall include but not be limited to reimbursement for Broker's attorneys' fees and costs.

(b) Lease: Seller/Landlord shall provide Broker with a Landlord's Notice to Tenant Regarding Flood Risk filled out and signed by Seller/Landlord. Seller/Landlord agrees to indemnify and hold Broker harmless from and against any and all claims arising from or related to false or incomplete information provided by Seller/Landlord included in, or relating to, the Landlord's Notice to Tenant Regarding Flood Risk. Such indemnification shall include but not be limited to reimbursement for Broker's attorneys' fees and costs.

13. INCLUSIONS: The following equipment and/or extras are specifically included with the sale price of the Property: _____
_____
_____
_____
_____.

14. EXCLUSIONS: The following equipment and/or extras are specifically excluded from the sale price of the Property: _____
_____
_____
_____
_____.

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15. ADDITIONAL SALES INFORMATION:

(a) Bank Owned/REO: ☐ Yes ☐ No
The Property is owned by a bank or other lender and may have been acquired through a foreclosure sale

(b) Third-Party Approval: ☐ Yes ☐ No
A third-party must approve the sales price and/or the amount or rate of commission.

(c) Short Sale: ☐ Yes ☐ No
The proceeds will fall short of what Seller/Landlord still owes on the outstanding mortgage and/or other liens, if any.

(d) Condominium/Homeowners Association ("HOA"): ☐ Yes ☐ No
If the Property is subject to a HOA, Seller/Landlord must execute the attached Condominium/Homeowners Associations Addendum.

16. OWNERSHIP AND LIENS: Seller/Landlord represents and warrants to Broker the following:

(a) Seller/Landlord is the sole owner of the Property;
(b) Seller/Landlord has the legal right to sell/lease the Property;
(c) Seller/Landlord is authorized to enter into this Agreement;
(d) Seller/Landlord, to the best of its knowledge, has marketable title to the Property;
(e) Seller/Landlord has disclosed all known mortgages, other liens (including unpaid taxes) and encumbrances outstanding against the Property;
(f) If the sale is at the Listing Price, there will be sufficient proceeds to discharge all liens and encumbrances and to pay the Broker's commission stated in Section 5 of this Agreement at the time of closing or the execution of the lease or any renewal or extension of the lease. If the proceeds of the sale of the Property or lease commission fees are insufficient at the time of the sale or lease, or lease renewal or extension, Seller/Landlord shall remain liable for any and all unpaid commission fees to Broker;
(g) If this is an exclusive Agreement, that the Property is not presently listed with any other real estate brokerage firm or subject to any protection period for any listing agreement with another broker that will not terminate upon the Commencement Date of this Agreement. If this is a non-exclusive Agreement, that the Property is not presently exclusively listed with any other real estate brokerage firm or subject to any protection period for any exclusive listing agreement with another broker that will not terminate upon the Commencement Date of this Agreement; and
(h) Seller/Landlord agrees and acknowledges that the dollar amount of the commission payable to Broker pursuant to this Agreement shall be an equitable lien (a legal claim) on the Property from the time a sales contract or lease, as applicable, is executed and then on the purchase money proceeds derived from the sale of the Property and/or the rents derived from leasing the Property. Seller/Landlord authorizes and directs the party disbursing the closing proceeds or collecting the rents, as applicable, to pay to Broker, and any cooperating broker(s) due a commission from Seller/Landlord, the full commission(s) as set forth in this Agreement out of the proceeds of the sale or rents, as applicable, prior to the payment of any funds to the Seller/Landlord or any other lienholders, except as otherwise required by law.

17. APPLICABLE LAWS: This Agreement shall be governed by and construed in accordance with the laws of the State of New Jersey and any arbitration or lawsuit relating to or arising from this Agreement shall be venued in the State of New Jersey.

18. ARBITRATION/ATTORNEYS' FEES: INSTEAD OF SUING IN COURT, SELLER/LANDLORD AND BROKER AGREE THAT ANY DISPUTE ARISING FROM OR RELATED TO THIS AGREEMENT SHALL BE SETTLED ONLY BY ARBITRATION. THE RULES IN ARBITRATION ARE DIFFERENT THAN IN A COURT. THERE IS NO JUDGE OR JURY AND REVIEW IS LIMITED, BUT AN ARBITRATOR CAN AWARD THE SAME DAMAGES AND RELIEF AND MUST HONOR THE SAME LIMITATIONS STATED IN THIS AGREEMENT AS A COURT WOULD. Seller/Landlord and Broker agree that, before filing for arbitration, any dispute arising from or related to this Agreement shall be submitted to mediation and, if the mediation is unsuccessful, then to arbitration before the American Arbitration Association or a REALTOR® Association located in the State of New Jersey at the choice of the filing party. If mediation, arbitration and/or a lawsuit, is filed by Seller/Landlord or Broker concerning any issue arising from or related to this Agreement, the prevailing party shall be entitled, in addition to any other remedy, to be paid reasonable attorneys' fees, arbitration fees, court costs and other expenses incurred.

19. TERMINATION/BREACH:

(a) Termination. Seller/Landlord acknowledges and understands that this Agreement is a legally binding contract between Seller/Landlord and Broker that may be terminated for legally sufficient cause or by mutual agreement, in writing.
(b) Seller/Landlord's Breach. If this Agreement is an exclusive agreement and is not properly terminated and Seller/Landlord signs a brokerage services agreement concerning the Property with another real estate brokerage firm that becomes effective during the Term of this Agreement or that affects Broker's rights during the Protection Period, Seller/Landlord will be in breach of this Agreement. If Seller/Landlord breaches this Agreement and the Property is subsequently under contract,

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sold, conveyed, leased, rented, optioned or in any way transferred, Broker will be entitled to pursue all remedies available, including but not limited to recovery of the commission set forth in this Agreement. This provision is in addition to Broker's right to collect a commission if Seller/Landlord breaches or defaults on a valid contract to sell or otherwise transfer and/or lease the Property after a commission has been earned.

(c) Broker's Breach. If Broker breaches this Agreement, Seller/Landlord will be entitled to pursue all remedies available to Seller/Landlord for such breach.

20. ADDITIONAL TERMS TO AGREEMENT (OPTIONAL): Seller/Landlord and Broker agree to the following additional terms and conditions that are incorporated into this Agreement (if a specific Section of the Agreement is being amended, it is recommended that the Section be referenced in the following terms): _____

_____

_____

_____

_____

_____

_____

_____

_____

Initials for Section 20:

Broker/Licensee: _____ Date: _____ Seller/Landlord: _____ Date: _____

Seller/Landlord: _____ Date: _____

Seller/Landlord: _____ Date: _____

Seller/Landlord: _____ Date: _____

21. SEVERABILITY: If any provision of this Agreement, or its application to any person or circumstances, is held invalid or unenforceable, the remainder of this Agreement and its application shall not be affected.

22. ENTIRE AGREEMENT: This Agreement contains the entire agreement between Seller/Landlord and Broker and only may be amended by an agreement in writing signed by Seller/Landlord and Broker. No representations have been made by either party, except as set forth in this Agreement. Seller/Landlord acknowledges receipt of a signed copy of this legally binding Agreement and agree to be bound and comply with its terms and conditions, and shall be binding upon Seller/Landlord's heirs, successors, administrators, personal representatives and assigns.

IF SELLER/LANDLORD DOES NOT UNDERSTAND ANY OF THE TERMS OF THIS AGREEMENT, LEGAL ADVICE SHOULD BE SOUGHT BEFORE SIGNING.

By: _____ _____ _____

Broker/Licensee | Seller/Landlord | Date

_____ _____

Seller/Landlord | Date

_____ _____

Seller/Landlord | Date

_____ _____

Seller/Landlord | Date

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NEW JERSEY REALTORS®

WAIVER OF BROKER COOPERATION

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Pursuant to N.J.A.C. 11:5-6.4(f)(4), when the Seller/Landlord, as the owner of the property, directs their listing broker not to cooperate at all with all other licensees, evidence of Seller's/Landlord's intent must be set forth in writing in the form of a WAIVER OF BROKER COOPERATION as set forth below and signed by the Seller/Landlord as "owner".

Accordingly, pursuant to N.J.A.C. 11:5-6.4(f), copies of this signed WAIVER OF BROKER COOPERATION, and the residential listing agreement to which it relates, dated _____, concerning the property known as _____ _____ (address), must become a part of the residential listing agreement at the time it is signed, and must be made available for inspection by other brokers upon request. However, no direction from the Seller/Landlord shall relieve the listing broker of the listing broker's responsibility of dealing fairly and exercising integrity with all other licensees.

The WAIVER OF BROKER COOPERATION as required by the New Jersey Real Estate Commission pursuant to N.J.A.C. 11:5-6.4(f), is as follows:

I UNDERSTAND THAT COOPERATION AMONGST BROKERS PRODUCES WIDER EXPOSURE OF MY PROPERTY AND MAY RESULT IN IT BEING SOLD OR LEASED SOONER AND AT A HIGHER PRICE THAN WOULD BE THE CASE WERE MY BROKER NOT TO COOPERATE WITH OTHER BROKERS. I FURTHER UNDERSTAND THAT WHEN MY BROKER COOPERATES WITH OTHER BROKERS, I CAN STILL HAVE THE ARRANGEMENTS FOR THE SHOWING OF THE PROPERTY AND ALL NEGOTIATIONS WITH ME OR MY ATTORNEY MADE ONLY THROUGH MY LISTING BROKER'S OFFICE, SHOULD I SO DESIRE.

However, despite my awareness of these factors, I direct that this property is to be marketed only through the efforts of the listing broker. This listing is not to be published in any multiple listing service. I will only consider offers on this property which are obtained by, and I will only allow showings of this property to be conducted by the listing broker or his or her authorized representatives. THE LISTING BROKER IS HEREBY DIRECTED NOT TO COOPERATE WITH ANY OTHER BROKER.

This Agreement is entered into to memorialize the negotiated and agreed to cooperative compensation between Landlord's Broker and Tenant's Broker. The terms of this Agreement may not be modified unless made in writing and signed by both parties.

By signing below, the parties hereto confirm that no pressure or undue influence has been exerted upon the owners as to how this property is to be marketed by the Listing Broker.

The owner(s) further confirm receipt of fully executed copies of the listing agreement on this property and of this Waiver of Broker Cooperation form.

By: _____	_____	_____
Broker/Licensee	Seller/Landlord	Date
	_____	_____
	Seller/Landlord	Date
	_____	_____
	Seller/Landlord	Date
	_____	_____
	Seller/Landlord	Date

DISCLAIMER: AS SELLER/LANDLORD YOU HAVE THE RIGHT TO INDIVIDUALLY REACH AN AGREEMENT ON ANY FEE, COMMISSION OR OTHER VALUABLE CONSIDERATION WITH ANY BROKERAGE FIRM. BROKER COMMISSIONS ARE FULLY NEGOTIABLE AND NO FEE, COMMISSION OR OTHER CONSIDERATION HAS BEEN FIXED BY ANY GOVERNMENTAL AUTHORITY OR BY ANY TRADE ASSOCIATION OR MULTIPLE LISTING SERVICE.

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ADDENDUM TO RESIDENTIAL LISTING AGREEMENT
REGARDING LOCKBOX AUTHORIZATION

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Seller/Landlord authorizes Broker to place an ☐ Electronic Lockbox or a ☐ Combination Lockbox at the Property.

Seller/Landlord acknowledges that the main differences between an Electronic Lockbox and a Combination Lockbox are as follows:

(a) An Electronic Lockbox typically requires a special registered electronic key to open the lockbox and release the shackles, allows viewing of showing agent's name and phone number, showing notice and email when opened, records activity details (i.e., when the lockbox is opened) and can be set to restrict lockbox access to the Property to specified times; and

(b) A Combination Lockbox typically does not require a special registered electronic or any other type of key to open, its combination is set by Broker and is given to other showing agents, does not record the showing agent's name and phone number or when the lockbox is opened, and cannot be set to restrict lockbox access hours to the Property.

Seller/Landlord acknowledges that lockboxes may be compromised or circumvented resulting in personal injury or property damage or loss by burglary or otherwise. Broker is not an insurer against personal injury or property damage or loss incurred by Seller/Landlord or others at the Property and Seller/Landlord is advised to safeguard or remove valuables located within the Property and to verify the existence of or obtain insurance against the risks of personal injury, property damage and loss of personal property.

If a tenant(s) occupies the Property, then Seller/Landlord will obtain the consent of the tenant(s) to this authorization to use a lockbox.

Seller/Landlord releases and agrees to indemnify, defend and hold Broker harmless from and against any and all claims or losses arising from or in connection with the use of a lockbox at the Property.

By: _____ _____ _____
Broker/Licensee | Seller/Landlord | Date

_____ _____
Seller/Landlord | Date

_____ _____
Seller/Landlord | Date

_____ _____
Seller/Landlord | Date

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CONSUMER INFORMATION STATEMENT ON NEW JERSEY REAL ESTATE RELATIONSHIPS

New Jersey State law requires real estate licensees to disclose how they intend to work with buyers and sellers in a real estate transaction. This information statement is intended to assist you in making informed decisions regarding your relationship with a real estate broker and its sales agents. (In rental transactions, the terms “buyers” and “sellers” throughout this document should be read as “tenants” and “landlords”, respectively).

1. A SELLER'S AGENT OR SUBAGENT REPRESENTS THE SELLER AND WILL DISCLOSE ALL MATERIAL INFORMATION SUPPLIED BY THE BUYER TO THE SELLER.

2. A BUYER'S AGENT REPRESENTS THE BUYER AND WILL DISCLOSE ALL MATERIAL INFORMATION SUPPLIED BY THE SELLER TO THE BUYER.

3. A DISCLOSED DUAL AGENT REPRESENTS BOTH PARTIES AND MAY NOT, WITHOUT EXPRESS PERMISSION, DISCLOSE THAT THE SELLER WILL ACCEPT A PRICE LESS THAN THE LISTING PRICE OR THAT THE BUYER WILL PAY A PRICE GREATER THAN THE OFFERED PRICE.

4. A TRANSACTION BROKER DOES NOT REPRESENT EITHER THE BUYER OR THE SELLER. ALL INFORMATION ACQUIRED FROM ONE PARTY MAY BE DISCLOSED TO THE OTHER PARTY.

5. A DESIGNATED AGENT HAS THE SAME DUTIES TO ITS PRINCIPAL AS A SELLER'S OR BUYER'S AGENT, HOWEVER THE BROKERAGE FIRM THE DESIGNATED AGENT IS AFFILIATED WITH ACTS AS A DISCLOSED DUAL AGENT.

Before you disclose confidential information to a real estate licensee regarding a real estate transaction, you should understand what type of business relationship you have with that licensee. There are five business relationships: (1) seller's agent; (2) buyer's agent; (3) disclosed dual agent; (4) designated agent; and (5) transaction broker. Each of these relationships imposes certain legal duties and responsibilities on the licensee as well as on the seller or buyer represented. These five relationships are defined in greater detail below.

Please read carefully before making your choice.

SELLER'S AGENT

A seller's agent works only for the seller to secure a buyer for the seller's home at a price and on terms acceptable to the seller. The seller's agent solely represents the interests of the seller and has legal obligations, called fiduciary duties, to the seller. These duties include, without limitation, reasonable care, undivided loyalty, confidentiality, full disclosure and the duty to account.

Seller's agents often work with buyers, but do not represent the buyers. In working with buyers or their representatives, a seller's agent must act honestly and treat all parties to a transaction fairly. A seller's agent may not make any misrepresentations to either party on matters material to the transaction, such as the buyer's financial ability to pay, and must disclose defects of a material nature affecting the physical condition of the property, which a reasonable inspection by the agent would uncover.

Seller's agents include all persons licensed with the brokerage firm, which has been authorized through a listing agreement to work as the seller's agent. In addition, other brokerage firms may accept an offer to work with the listing broker's firm as the seller's agents. In such cases, those firms and all persons licensed with such firms are called “sub-agents.” Sellers who do not desire to have their property marketed through sub-agents should so inform the seller's agent.

BUYER'S AGENT

A buyer's agent works only for the buyer to negotiate the purchase of a home at a price and on terms acceptable to the buyer. The buyer's agent solely represents the interests of the buyer and has fiduciary duties to the buyer. These duties include, without limitation, reasonable care, undivided loyalty, confidentiality, full disclosure, and the duty to account.

Buyer's agents often work with sellers, but do not represent the sellers. In working with sellers or their representatives, a buyer's agent must act honestly and treat all parties to a transaction fairly. A buyer's agent may not make any misrepresentations on matters material to the transaction, such as the buyer's financial ability to pay, and must disclose defects of a material nature affecting the physical condition of the property which a reasonable inspection by the agent would uncover.

Buyer's agents include all persons licensed with the brokerage firm, which has been authorized through a brokerage services agreement to work as the buyer's agent.

DISCLOSED DUAL AGENT

A disclosed dual agent represents both the buyer and seller in a real estate transaction. To work as a dual agent, a firm must first obtain the informed written consent of the buyer and the seller. Disclosed dual agency is most likely to occur when a buyer's agent shows the buyer properties owned by sellers who are represented by the same brokerage firm that the buyer's agent is affiliated with.

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A brokerage firm acting as a disclosed dual agent may not put one party's interests ahead the other party's and cannot advise or counsel either party on how to gain an advantage at the expense of the other party on the basis of confidential information obtained from or about the other party. When working as a disclosed dual agent, a brokerage firm must have the express permission of a party prior to disclosing confidential information to the other party. Such information includes the highest price a buyer can afford to pay and the lowest price a seller will accept and the parties' motivation to buy or sell.

Disclosed dual agents must carefully explain to each party, that, in addition to working as their agent, their firm will also work as the agent for the other party. They must also explain the effects of dual representation on the firm's fiduciary duties to each party, including that by consenting to the dual agency relationship, the buyer and seller are forfeiting their right of undivided loyalty.

In the absence of designated agency, disclosed dual agents include all persons licensed with the brokerage firm, which has been authorized through a brokerage services agreement to work with both parties as disclosed dual agents.

Buyers and sellers should carefully consider the consequences of a dual agency before agreeing to such representation.

DESIGNATED AGENT

Upon the informed written consent of the buyer and the seller, a brokerage firm that represents both parties as a disclosed dual agent may designate separate individual agents to represent the buyer and seller. Each designated agent represents the interests of their designated principal (the buyer or seller) and advocates on their behalf in negotiations between the buyer and seller. Designated agents have duties that are the same as a buyer's or seller's agent, as applicable, which are summarized above. The brokerage firm, under whose supervision the designated agent functions, remains a dual agent of both buyer and seller and accordingly cannot provide undivided loyalty to either party.

TRANSACTION BROKER

New Jersey law does not require real estate brokerage firms to work in the capacity of an "agent" when providing brokerage services. A transaction broker works with the buyer or seller or both in the transaction without representing either party. A brokerage firm acting in the capacity of transaction broker serves as a manager of the transaction and performs tasks to facilitate the closing of the transaction.

A transaction broker must communicate and work with all parties to assist them in arriving at a mutually acceptable agreement and in closing the transaction but cannot advise or counsel either party on how to gain an advantage at the expense of the other party. Transaction brokers are required to treat all parties fairly and to act in a competent manner but are not required to keep any information confidential.

The transaction broker relationship extends to all persons licensed with the brokerage firm, which has been authorized through a brokerage services agreement to work as a transaction broker.

YOU MAY OBTAIN LEGAL ADVICE ABOUT THESE BUSINESS RELATIONSHIPS FROM YOUR OWN LAWYER. THIS STATEMENT IS NOT A CONTRACT AND IS PROVIDED FOR INFORMATIONAL PURPOSES ONLY.

IN ACCORDANCE WITH N.J.A.C. 11:5-6.2 (b) and (c), BROKERAGE FEES AND COMMISSIONS ARE NOT SET BY LAW AND ARE FULLY NEGOTIABLE.

ACKNOWLEDGMENT OF RECEIPT OF CONSUMER INFORMATION STATEMENT (CIS)

FOR SELLERS AND LANDLORDS

By signing this Consumer Information Statement, I acknowledge that I received this Statement from

_____ of _____
(Print Name of Licensee) (Print Name of Brokerage Firm)

prior to discussing my motivation to sell or lease or my desired selling or leasing price with one of its representatives.

Signed: _____ _____ Date: _____

FOR BUYERS AND TENANTS

By signing this Consumer Information Statement, I acknowledge that I received this Statement from

_____ of _____
(Print Name of Licensee) (Print Name of Brokerage Firm)

prior to discussing my motivation to buy or lease or my desired buying or leasing price with one of its representatives.

Signed: _____ Date: _____

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PHILIP D. MURPHY
Governor

SHEILA Y. OLIVER
Lt. Governor

State of New Jersey
OFFICE OF THE ATTORNEY GENERAL
DEPARTMENT OF LAW AND PUBLIC SAFETY
DIVISION ON CIVIL RIGHTS
31 CLINTON STREET, 3RD FLOOR
NEWARK, NJ 07102

ANDREW J. BRUCK
Acting Attorney General

TO: Property Owners

FROM: Andrew J. Bruck, Acting Attorney General, State of New Jersey
Rosemary DiSavino, Deputy Director, NJ Division on Civil Rights

DATE: December 2021

SUBJECT: Housing Discrimination Laws

The New Jersey Real Estate Commission (REC) requires every licensed broker or salesperson with whom you list your property to give you a copy of this notice. The purpose is to help you comply with the New Jersey Law Against Discrimination (LAD) and the Fair Chance in Housing Act (FCHA) (effective January 1, 2022).

Law Against Discrimination:

Under the LAD, it is illegal to discriminate against a prospective or current buyer or tenant because of actual or perceived race, religion, national origin, nationality, ancestry, pregnancy or breastfeeding, sex, gender identity or expression, sexual orientation, familial status (defined as having care or custody of a child under age 18 or being pregnant), disability, liability for service in the Armed Forces of the United States, marital status, civil union status, or domestic partnership status. It is also illegal to discriminate against a prospective or current buyer or tenant because of any source of lawful income to be used for rental or mortgage payments. And it is illegal to make, print, or publish any statement, including print advertisements and online postings, expressing any preference, limitation, or discrimination based on any of those protected characteristics.

The LAD applies to a wide range of activities, such as advertising, selling, renting, leasing, subleasing, assigning, and showing property (including open land). Here are some issues that come up frequently in enforcing the LAD:

- The prohibition on discrimination based on source of lawful income means, for example, that a landlord cannot reject a prospective tenant because they intend to pay with subsidies or vouchers provided by federal, state, or local rental-assistance programs including Section 8 housing choice vouchers, COVID-19 Emergency Rental Assistance Program (CVERAP),

State Rental Assistance Programs (SRAP), temporary rental assistance (TRA), Eviction Prevention Program (EPP), unemployment benefits, child support, alimony, and supplemental security income. A housing provider cannot advertise a property in any way that discriminates based on source of lawful income, including by posting advertisements that state, directly or indirectly, a refusal to accept, or express any limitation on, vouchers or subsidies. For example, advertisements that state "No Section 8," "TRA not accepted," or "This property not approved for Section 8" violate the LAD. In addition, housing providers must calculate any minimum income requirement, financial standard, or income standard based only on the portion of the rent to be paid by the tenant, rather than the entire rental amount.

- The LAD prohibits bias-based harassment in housing, including sexual harassment. If a tenant is being subjected to bias-based harassment that creates a hostile environment, and if the housing provider knew or should have known about it, the housing provider must take reasonable steps to stop it. That includes harassment by other tenants and by a housing provider's agents or employees. "Quid pro quo" sexual harassment-for example, where a building superintendent demands sex or sexual favors as a condition of making necessary repairs-is also prohibited.

- Housing providers must reasonably accommodate tenants with disabilities unless doing so would be an undue burden on their operations. For example, if a tenant shows they have a disability and that keeping an emotional support animal is necessary to afford them an equal opportunity to use and enjoy the dwelling, the housing provider must permit the emotional support animal, even despite a "no pets" policy, unless they can show that doing so would be an undue burden.

- A "no pets" rule cannot be enforced against a person with a disability who has a service or guide animal. A landlord may also not charge a tenant with a disability an extra fee for keeping a service or guide animal.

- Landlords must permit a tenant with a disability-at that tenant's own expense-to make reasonable modifications to the premises if such modifications are needed to give the tenant an equal opportunity to use or enjoy the dwelling.

- The LAD prohibits discrimination based on "familial status"-for example, discrimination against families with children under the age of 18 and pregnant people. Landlords similarly cannot use unreasonable occupancy restrictions to prevent families with children from moving in.

- Selectively inquiring about, or requesting information about and/or documentation of, a prospective tenant's or buyer's immigration or citizenship status because of the person's actual or perceived national origin, race, or ethnicity, or otherwise discriminating on such a basis, is a violation of the LAD.

- As explained in the U.S. Department of Housing and Urban Development's April 2016 Guidance document, because of widespread racial and ethnic disparities in the criminal justice system, blanket policies that make all individuals with any prior arrest or criminal conviction

ineligible to rent violate both the LAD and the federal Fair Housing Act because they have a disparate impact based on race or national origin and are not supported by a legitimate business necessity. And housing providers may not use criminal history as a pretext for intentionally discriminating based on race or national origin (for example, by applying criminal-record based restrictions against Black housing applicants but not white housing applicants).

Penalties. If you commit a discriminatory housing practice that violates the LAD, you may be subject to penalties up to $10,000 for a first violation, up to $25,000 for a second violation within five years of the first offense, and up to $50,000 for two or more violations within seven years.

Other remedies. Victims of discrimination may recover economic damages related to the discrimination (such as having to pay higher rent for another unit), as well as damages for emotional distress, pain, and humiliation. In more egregious cases, a victim may also recover punitive damages.

Brokers. The broker or salesperson with whom you list your property must transmit to you every written offer they receive on your property. Brokers and salespersons are licensed by the New Jersey Real Estate Commission and their activities are subject to the LAD as well as general real estate laws of the State and the Commission's own rules and regulations. The broker or salesperson must refuse your listing if you indicate an intent to discriminate on any basis prohibited by the LAD.

Fair Chance in Housing Act:

The FCHA prohibits housing providers from asking about rental applicants' criminal records on an initial application or otherwise considering an applicant's criminal record in any way, until after they've made a conditional housing offer to the applicant, with limited exceptions as required under federal law. The goal of the FCHA is to ensure that formerly incarcerated and system-involved people have fair access to housing around the state.

Nothing about the FCHA requires landlords or housing providers to consider a person's criminal record in housing. If a housing provider does review an applicant's criminal history after a conditional offer, specific restrictions apply. A housing provider must conduct an individualized analysis of an applicant's criminal record and may only deny housing if withdrawing a conditional offer is necessary to fulfill a substantial, legitimate, and nondiscriminatory interest.

Here are some of the specific requirements for housing providers under the FCHA:

- Housing providers are prohibited from asking about applicants' criminal records until after they've made a conditional housing offer, except for convictions of drug-related criminal activity for the manufacture or production of methamphetamine on the premises of federally assisted housing, or if the applicant is subject to a lifetime registration in a state sex offender registry.

- Even after a conditional offer, a housing provider may not consider arrests or charges that did not result in a criminal conviction, expunged convictions, convictions erased through executive pardon, vacated and otherwise legally nullified convictions, juvenile adjudications of delinquency, and sealed records.

- If a housing provider chooses to consider an applicant's criminal history after a conditional offer, they may only consider:

    - Convictions for murder, aggravated sexual assault, kidnapping, arson, human trafficking, sexual assault, endangering the welfare of a child in violation of N.J.S.2C:24-4(b)(3);
    - Convictions for any crime that requires lifetime state sex offender registration;
    - Any 1st degree indictable offense, or release from prison for that offense, within the past 6 years;
    - Any 2nd or 3rd degree indictable offense, or release from prison for that offense, within the past 4 years; or
    - Any 4th degree indictable offense, or release from prison for that offense, within the past 1 year.

- For a conviction that can be considered, a housing provider must conduct an individualized analysis that includes:

    - Nature and severity of the offense(s)
    - Applicant's age at the time of the offense(s);
    - How recently the offense(s) occurred;
    - Any information the applicant provided in their favor since the offense(s);
    - If the offense(s) happened again in the future, whether that would impact the safety of other tenants or property; and
    - Whether the offense(s) happened on, or was connected to, property that the applicant had rented or leased

- If the housing provider intends to consider criminal history as provided for under the FCHA after a conditional offer, they cannot accept an application fee before disclosing that fact to the applicant, and offering the applicant an opportunity to provide evidence of inaccuracies in their criminal record, other evidence of rehabilitation, or mitigating factors. This requirement can be fulfilled using the Model Disclosure Statement on DCR's website, found at https://www.njoag.gov/wp-content/uploads/2021/12/Model-Disclosure-Statement_12.14.21.pdf.

- If the housing provider withdraws a conditional offer based on criminal record, they must explain in writing their justification for doing so, which can be fulfilled using the Model Notice of Withdrawal on DCR's website, found at https://www.njoag.gov/wp-content/uploads/2021/12/Model-Notice-of-Withdrawal_12.15.21.pdf. An applicant can then request the information the housing provider relied upon, and can submit mitigating information or inaccuracies related to aspects of their criminal record which may be considered under the FCHA, which the housing provider must then consider.

- If the housing provider utilizes any vendor or outside person or entity to conduct a criminal record check on their behalf, they shall take reasonable steps to ensure that the vendor or outside person or entity is conducting the criminal record check consistent with the requirements of the FCHA. The housing provider will be liable under the FCHA for relying

on a criminal history inquiry conducted by a vendor or outside person or entity that is conducted in violation of the FCHA if it failed to take reasonable steps to ensure compliance.

- Housing providers are prohibited from discriminating against those with criminal records in any advertising, notices, or publications. They also cannot require applicants to submit to drug or alcohol testing, or to provide information from a treatment facility.

Penalties. If you violate the FCHA, you may be subject to penalties up to $1,000 for a first violation within five years of the complaint, up to $5,000 for a second violation within five years of the complaint, and up to $10,000 for two or more violations within seven years.

Other remedies. DCR may also authorize other remedies depending on the circumstances.

For more information about the LAD, the FCHA, or if you have other questions about discrimination in the sale or rental of real property, including how to report a complaint, please visit **www.NJCivilRights.gov** or call our Housing Hotline at **(866) 405-3050**. DCR has a number of fair housing fact sheets that are available at **https://www.nj.gov/oag/dcr/housing.html**. Thank you.



Andrew J. Bruck
Acting Attorney General



Rosemary DiSavino
Deputy Director, Division on Civil Rights

DATE: _____

Licensed Broker or Salesperson:

_____ _____
Print name Signature

Property Owner:

_____ _____
Print name Signature